S.No.2

IN THE NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH – 1
VC AND PHYSCIAL (HYBRID) MODE
ATTENDANCE CUM ORDER SHEET OF THE HEARING HELD ON
15-07-2025 AT 02:00 PM

CP (AA) No. 09/230/HDB/2025
U/s. 230 of Companies Act, 2013

IN THE MATTER OF:
M/s. Anasia Lab Pvt Ltd (Transferor Co.,) & M/s. Hazelo Lab Pvt Ltd (Transferee Co.,) ...**Petitioner**

CORAM:-
SH. RAMMURTI KUSHAWAHA, HON'BLE MEMBER (JUDICIAL)
SH. MAN MOHAN GUPTA, HON'BLE MEMBER (TECHNICAL)

ORDER

Learned PCS Mr. Vivek Surnana for Petitioner present through video conference.

The Order is pronounced on separate sheets. In the result, **CP (AA) No. 09/230/HDB/2025 is allowed,** subject to the directions mentioned in the order.

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MAN MOHAN GUPTA
MEMBER (T)

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RAMMURTI KUSHAWAHA
MEMBER (J)

IN THE NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH-I

CP (CAA) No. 09/230/HDB/2025 connected with
CA (CAA) NO. 29/230/HDB/2024
U/s 230 and 232 of the Companies Act, 2013

IN THE MATTER OF

HAZELO LAB PRIVATE LIMITED

(CIN: U24110TG2015PTC098450)

(TRANSFEREE COMPANY/PETITIONER COMPANY NO.1)

AND

ANASIA LAB PRIVATE LIMITED

(CIN: U24304TG2020PTC141061)

(TRANSFEROR COMPANY/ PETITIONER COMPANY NO.2)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

HAZELO LAB PRIVATE LIMITED,
Having registered office at SY No.247 & 248 Dothigudem (V)
Jiblakpally, B. Pochampally (M), Nalgonda - 508284, Telangana, India,
Represented by its Director Mr. M. Kesireddy Subhas Chander Reddy,
Email: secretarial.hazelo@gmail.com, Phone: 9989867941.
...Petitioner No.1 / Transferee Company

ANASIA LAB PRIVATE LIMITED
Having registered office at SY No.247 & 248, Dothigudem (V)
Jiblakpally, B. Pochampally (M) Nalgonda 508284, Telangana, India
Represented by its Director Mr. M. Kesireddy Subhas Chander Reddy
Email: Anasialab.secretarial@gmail.com, Phone: 9989867941.
...Petitioner No.2 / Transferor Company

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DATE OF ORDER: 15.07.2025

CORAM:-

SHRI RAMMURTI KUSHAWAHA, HON'BLE MEMBER (JUDICIAL)
SHRI MAN MOHAN GUPTA, HON'BLE MEMBER (TECHNICAL)

Counsels / Parties Present

For the Petitioner : Mr. Vivek Surana, PCS
For the Respondent : Mr. Richa Kukreja, Regional Director (RD) and
Ms. Kusum Yadav, Assistant RD,
Mr. U.K.Sahoo, Official Liquidator (OL) and
Mr.Deowarat Vasantrao Meshram, Assistant OL
Ms.Bokaro sapna Reddy, Counsel for Income Tax Department.

PER BENCH

1. This is a Petition filed by the Petitioner Companies under Sections 230 to 232 read with Companies (Compromises, Arrangements and Amalgamations), Rules 2016 inter-alia seeking for sanction of the Scheme of Amalgamation which is annexed as Annexure-7 with effect from the appointed date i.e., 01.04.2024 to the Petition between Transferor Company and Transferee Company and their respective shareholders and creditors.

2. The averments made in the Petition are briefly described as under:
   a. The Petitioner No.1/Transferee Company viz., **Hazelo Lab Private Limited (Transferee Company)** was incorporated as a Private Limited Company under the name and style of "Hazelo Lab Private Limited" in the State of Telangana on 13.04.2015, under the provisions of Companies

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Act, 2013. The Present Corporate Identity Number (CIN) of the Company is U24110TG2015PTC098450. A copy of the Certificate of Incorporation of the Transferee Company is annexed as **Annexure 1** to this Petition.

b. The main objects of the Petitioner No.1/Transferee Company are to carry on in India or elsewhere the business to manufacture, produce, process, prepare, treat, disinfect, compound, formulate, mix, concentrate, pack, repack, refine, add, remove, preserve, grade, freeze, distillate, boil, sterilize, improve, extract, buy, sell, import, export, store, forward, distribute, dispose, develop, research, discover, manipulate, market, supply and to act as agent, broker, representative, consultant, stockiest, liasioner, middleman, job worker or otherwise to deal in all types, descriptions, specifications, strengths and applications of pharmaceutical and chemical products of medicaments in all its branches such as allopathic, ayurvedic, homeopathic, herbal, unani, siddha used for treatment, cure and healthcare of human beings and animals including, basic drugs, intermediates, tonics, antibiotics, enzymes, steroids, vitamins, hormones, biological &immunological chemicals, contraceptives, waddings, gauzes, adhesives, ligatures, vaccines, toxins, yeasts, medical gases, diagnostic agents, oils and tinctures; medical products in all forms such as capsules, tablets, powders, ointments, syrups, injectibles, pills, fluids, granules, sprayers, inhalers, mineral waters, droppers, removers, veterinary medicines, poultry medicines, herbal products, by-products, intermediates, residues, mixtures,

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compounds, and other allied goods. A copy of the Memorandum and Articles of Association of the Petitioner No.1/Transferee Company is annexed as **Annexure 2** to the Petition.

c. The Authorised Share Capital of the Transferee Company as on 31.03.2024 is Rs. 5,00,00,000/- (Rupees Five Crores only) divided into 50,00,000 (Fifty Lakhs) Equity Shares of Rs.10/- (Rupees Ten only) each. The issued, subscribed and paid-up share capital of the Transferee Company is Rs. 5,00,00,000/- (Rupees Five Crores only) divided into 50,00,000 (Fifty Lakhs) Equity Shares of Rs.10/- (Rupees Ten only) each. The Transferee Company (i.e., Hazelo Lab Private Limited) is the Holding Company of the Transferor Company (i.e.., Anasia Lab Private Limited) holding 100% of-the total paid up share capital of the Transferor Company. A copy of the audited financial statements (Standalone and consolidated) as on 31.03.2024 of the Transferee Company is annexed as **Annexure-3** to the Petition.

d. The Petitioner No.2/ Transferor Company was incorporated under the name and style of **"Anasia Lab Private Limited"** in the State of Telangana on 23.06.2020, under the provisions of Companies Act, 2013. The Present Corporate Identity Number (CIN) of the Company is U24304TG2020PTC141061. A copy of the Certificate of Incorporation of the Transferor Company is annexed as **Annexure 4** to the Petition.

e. The main objects of the Petitioner No.2/Transferor Company are to carry on the business of manufactures, sell, deal, export and import in all types of Chemicals, Drugs, Pharmaceuticals, Pesticides and Dyestuffs and other

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intermediates and to carry on the research and development activities to develop new products and substitute for imported products and to develop and maintain testing house and laboratory for own use and for others etc., A copy of the Memorandum and Articles of Association of the Petitioner No.2/Transferor Company is annexed as **Annexure-5** to the Petition.

f. The Authorized Capital of the Transferor Company as on 31.03.2024 is Rs.1,00,000/- (Rupees One Lakh only) divided into 10,000 (Ten Thousand) Equity Shares of Rs.10/- (Rupees Ten only) each. The Present issued, subscribed and paid-up share capital of the Transferor Company is Rs. 1,00,000/- (Rupees One Lakh only) divided into 10,000 (Ten Thousand) fully paid up Equity Shares of Rs.10/- (Rupees Ten only) each. Copy of the audited Financial Statements as at 31.03.2024 of the Transferor Company is annexed as **Annexure 6** to the Petition.

3. **RATIONALE, OBJECTIVE & PURPOSE OF THE SCHEME:**

That the present Scheme of Amalgamation between the Transferor Company with the Transferee Company, inter alia, have the following benefits:

a. The Scheme is presented under sections 230 – 232 of the Companies Act, 2013 and it provides for amalgamation of Transferor Company into Transferee Company, resulting in consolidation of business in one entity and thereby strengthening the position of the amalgamated entity by enabling it to harness and optimize the synergies of equipment's and

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human resources, which is in the best interest of both the Companies and their respective shareholders.

b. The proposed amalgamation will reduce administrative costs and also result in reduction of overheads and other expenses, reduction in administrative and procedural work, enable the amalgamated company to effect internal economies and optimize profitability as also to reduce administrative inefficiencies by reducing duplication of functions.

c. The proposed scheme of amalgamation is with a view to: -

- Simplify the corporate structure
- Integrate the operations
- Achieve operational and management efficiency.

d. Since both, Anasia Lab Private Limited (Transferor Company) and Hazelo Lab Private Limited (Transferee Company) are pursuing same and similar business, the amalgamation would prove highly advantageous in achieving economies of scale and cost reduction.

e. In order to achieve the objectives as mentioned in clause (a) to (d) above, the Boards of Directors of the Transferor Company and the Transferee Company have proposed to consolidate the Transferor Company and the Transferee Company into a Single Company by conveniently combining and amalgamating the businesses carried on by both the Companies.

f. The Scheme shall be beneficial and in the best interests of the shareholders, creditors (if any) and employees of the Transferor Company, the Transferee Company and to the interest of public at large and all concerned.

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Scheme of Amalgamation between the Anasia Lab Private Limited (Transferor Company) and Hazelo Lab Private Limited (Transferee Company) and their respective Shareholders and Creditors is annexed as **Annexure-7** to the Petition.

4. **COMPLIANCE OF ACCOUNTING STANDARD:**

The accounting treatment proposed at clause 12 of the Scheme of Amalgamation between Anasia Lab Private Limited (Transferor Company) and Hazelo Lab Private Limited (Transferee Company) and their respective Shareholders and Creditors is in conformity with the accounting standards as prescribed under the provisions of Section 133 of the Companies Act, 2013. Certificates issued by the Chartered Accountant confirming the Accounting Treatment proposed in the Scheme are annexed as **Annexure-8 & 9** to the Petition.

5. The Board of Directors of the Petitioner Companies at their respective meetings held on 23rd September, 2024, approved the Scheme of Amalgamation between Anasia Lab Private Limited (Transferor Company) and Hazelo Lab Private Limited (Transferee Company) and their respective Shareholders and Creditors. A certified copy of the Board Resolutions passed by the Board of Directors of the Petitioner Companies are annexed as **Annexure - 10 & 11** to the Petition.

6. It is submitted that the Petitioner Companies had filed a joint Company Application bearing CA (CAA) No. 29/230/HDB/2024, under section

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230 to 232 of the Companies Act, 2013. This Tribunal vide its Order dated 26.11.2024 allowed the application and dispensed with the requirement of convening the meeting of the Equity Shareholders of the Transferor Company & Transferee Company and for dispensing with the requirement of convening the meeting of the Creditors of the Transferor Company and meeting of the Secured Creditors of the Transferee Company and ordered meeting of the Unsecured Creditors of the Transferee Company for obtaining their approval to the scheme and appointed Mr.Naresh Kumar Sangam Advocate as Chairperson and Ms.Kushbu vijayavargi, PCS as the Scrutinizer for convening the said meeting. A copy of the Order passed by this Hon'ble Tribunal dated 26.11.2024 is annexed as **Annexure-12** to the Petition.

7. It is submitted that as per the directions of this Hon'ble Tribunal, the Chairperson Mr.Naresh Kumar Sangam, Advocate, convened the meeting of the Unsecured Creditors of Transferee Company on Friday, the 17th day of January, 2025. The total 18 (Eighteen) Unsecured Creditors whose amount of Rs.31,37,79,139/- (Rupees Thirty One Crores Thirty Seven Lakhs Seventy Nine Thousand One Hundred Thirty Nine only) is due as on 31.08.2024 constituting 37.40% of the total amount and all of them constituting 100% of the total valid votes cast, voted in favour of the above resolution. A copy of the notice dated 09.12.2024, for Convening the Meeting of the Unsecured Creditors of the Transferee Company, a copy of the Affidavit of Service dated 21.12.2024, filed by Mr. Naresh Kumar Sangam, Chairperson, a copy of Chairperson's report dated 24.01.2025, on the result of voting by the

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Unsecured Creditors of the Transferee Company and a certified true copy of the special resolution passed by the Unsecured Creditors of the Transferee Company along with the Form MGT-14 filed with the Registrar of Companies along with Challan, is annexed as **Annexure - 13, 14, 15 & 16** to the Petition.

8. It is submitted that this Tribunal vide order dated 20.02.2025 ordered notices to all the statutory authorities as per Rule 16 of Companies (Compromises, Arrangements and Amalgamations) Rules, 2016. Subsequently notices were issued on all the statutory Authorities. It is further submitted that the Petitioner Companies as per the order of this Tribunal, publication had been carried out in the Business Standard (English) and Nava Telangana (Telugu) Newspapers on 26.02.2025 and filed the Compliance Memo with this Tribunal on 20.03.2025.

9. The Regional Director, vide his Affidavit/ report dated 09.05.2025 has not objected to the proposed Scheme but has made certain observations. The Petitioner Companies have filed reply Affidavit dated 16.05.2025, in response to the observations made by the Regional Director, South East Region, Ministry of Corporate Affairs, Hyderabad. The details are given below:

Observations of Regional Director (SER), dated 09.05.2025	**Reply of the Petitioner Companies by way of affidavit, dated 16.05.2025**
Para No. 3(e) The Hon'ble Tribunal may please to direct the Petitioner companies to pay	It is submitted that the Transferee Company undertake that upon sanction

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differential fee and stamp duty for the increase in the authorized capital due to merger after deducting fee and stamp duty already paid by the Transferor company before the merger.	of the Scheme by this Hon'ble Tribunal, the Transferee Company shall file an Application with the Registrar of Companies, indicating the revised authorised capital along with proof of paying prescribed fee due, if any, on revised capital after setting off the fee already paid by the Transferor Company.
Para No. 3(f) to (h) The Hon'ble Tribunal may please to direct the Petitioner companies to preserve the books of Accounts and papers, comply with statutory laws and e-form No.INC-28 with the O/o. RoC.	The Petitioner Company undertakes to comply with all the applicable provisions and rules under the Companies Act, 2013.
Para No.4: The Hon'ble Tribunal may be pleased to direct the petitioner companies to comply with the observations pointed out by the Official Liquidator, followed by further report filed if any, before the scheme is allowed.	The Petitioner companies have filed undertaking through affidavit to comply with the observations made by the Official Liquidator as mentioned in para 22(a) to (k) of Report No.13 of 2025 dated 10.12.2024.
Para No.5: The Hon'ble Tribunal may be pleased to direct the petitioner companies to furnish an undertaking that, if any demand arises from the Income Tax Department with respect to Transferor Company and Transferee Company,	The Transferee company have undertaken to comply with all applicable provisions of the Income Tax Act, as well as all tax demands associated with it, as well as to pay all legal demands raised by the income tax department, subject to the outcome of the legal proceedings or

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Transferee Company is ready to pay the said statutory dues.	orders of the income tax appellate Tribunal or any higher quasi-judicial/judicial authority.
Para No. 6(f) : As seen from the balance sheet of the Petitioner Companies as at 31.03.2024, the transferee company owes a sum of Rs. 183.72 lakhs towards MSME dues. In this regard, the Transferee Company may be directed to settle dues immediately if not settled as far and also furnish an undertaking before the Hon'ble Tribunal in this regard.	The Petitioner companies submits that the creditors of the Transferee Company, including MSME creditors, will not be adversely affected by the proposed scheme of amalgamation. There will be no reduction in their claims as a result of amalgamation. Further, as on 31.03.2024, out of outstanding MSME dues of Rs. 183.72 lakhs, the Transferee Company has already paid Rs. 176.90 lakhs and the balance outstanding MSME dues of Rs. 6.80 Lakhs will be settled, discharged and paid upon resolving the payment terms with such MSME vendors. However, the Transferee Company has sufficient financial capability to meet all its liabilities. Further, the Transferee Company do hereby settle and discharge all undisputed MSME dues.
Para No.6(g) The Hon'ble Tribunal may be pleased to direct the petitioner companies to furnish an undertaking stating that the statutory dues payable by the Transferor	The Transferee Company undertakes that any statutory dues or liabilities payable by the Transferor Company, if any, shall be duly honored and

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Company shall also be paid by the Transferee Company.	discharged by the Transferee Company, in accordance with applicable laws.
Para No.6(h) The Hon'ble Tribunal may be pleased to direct the Transferee Company to show the compliance of the provisions of Section 185/186 of the Companies Act, 2013 and also furnish an undertaking before the Hon'ble Tribunal in this regard.	It is submitted that the Transferee Company has not granted any loans to its directors or to any person in whom any of the directors is interested, as contemplated under sub-section (1) of Section 185 of the Companies Act, 2013. It is further respectfully submitted that the loans have been extended to the Company's wholly owned subsidiary to the tune of Rs. 11,100 lakhs, which is specifically exempted under the provisions of Section 185(3)(c) of the Act. The said sub-section reads as under: *"Nothing contained in sub-section (1) shall apply to any loan made by a holding company to its wholly owned subsidiary company..."* Accordingly, the provisions of Section 185(1) are not attracted in the present case, and the Company is in due compliance with the requirements of Section 185 of the Act. It is submitted that the Transferee Company hereby undertakes that the loans granted are in full compliance with Sections 185 and 186 of the Companies Act, 2013 and all statutory requirements

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	and corporate approvals in respect of the aforesaid transactions have been duly adhered to.
Para No.6(i) The Hon'ble Tribunal may be pleased to direct the Petitioner Companies may be directed to show the compliance of the provisions of Section 188 of the Companies Act, 2013 and furnish an undertaking before the Hon'ble Tribunal in this regard.	The Petitioner Companies hereby undertake that the related Party transactions are in full compliance with Section 188 of the Companies Act, 2013 and all statutory requirements in respect of the aforesaid transactions have been duly adhered to.
Para No.6(j) The Hon'ble Tribunal may be pleased to direct the Transferee Company to obtain and furnish NOC from the charge holders before the Hon'ble Tribunal.	It is submitted that the No Objection Certificate/Letter issued by the Secured Creditors of the Transferee Company, evidencing their consent to the Scheme, is annexed hereto and marked as Annexure - 1 for Indusind Bank. However, the other secured creditor, i.e., Federal Bank Limited has come into existence on 13.12.2024 after the cut of date for ascertaining the creditors i.e., 31.08.2024. The Transferee Company undertakes, that the legal rights and interests of its secured creditors shall, under no circumstances, be prejudiced or

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	compromised in any manner by the proposed Scheme of Amalgamation.
Para No.6(k) The Hon'ble Tribunal may be pleased to direct the Transferee Company to furnish an undertaking before the Hon'ble Tribunal stating that the interests of the employees shall be protected.	The Transferee Company undertakes that to protect the interest of the employees of the Transferor Company and further declare and undertake that upon approval of the Scheme, the staff, employees and workmen of the Transferor Company shall become the employees of the Transferee Company.
Para No.6(m) The Hon'ble Tribunal may be pleased to direct the Transferee Company to comply with the provisions of Section 232(3)(i) of the Companies Act, 2013 and pay the differential fee after setting of the fee already paid by the Transferor Company and furnish an undertaking before the Hon'ble Tribunal.	The Transferee Company undertakes that upon sanction of the Scheme by this Hon'ble Tribunal, the Transferee Company shall file an Application with the Registrar of Companies, indicating the revised authorised capital along with proof of paying prescribed fee due, if any, on revised capital after setting off the fee already paid by the Transferor Company.

10. The Regional Director, vide his additional affidavit/ report dated 22.05.2025 to the reply affidavit filed by the Petitioner Companies dated 16.05.2025 and has made certain observations. With regard to the observations of the RD/RoC at para 3(e), (f), (g) and (h), Para 5, Para 6(g), (k) and (m) the Petitioner companies had undertaken to comply

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with the observations of the Deponent. It is submitted that with regard to the observations of the RD/RoC at Para 6 (f), (h) and (j) stated that the reply is convincing and praying this Hon'ble Tribunal to consider the reply.

11. The Official Liquidator has filed his report, vide OLR No. 13/2025 dated 22.04.2025 stating certain observations at point No.22 of his report. The observations pointed out has been replied by the petitioner companies vide affidavit dated 16.05.2025, The Official Liquidator filed Further Report, vide OLR No. 21/2025 dated 23.05.2025 to the reply affidavit of the Petitioner Companies dated 16.05.2025, which is mentioned below:

Observations of Official Liquidator	**Reply by way of Affidavit by the Petitioner Companies**	**Further Report by Official Liquidator**
Para 22(a) That, per Clause-C of Preamble as well as Clause 11 of Section-3 of Part-B of the Scheme, the Transferor Company is a wholly owned subsidiary of the Transferee Company and the entire issued, subscribed and paid-up share capital of Transferor Company is held by the Transferee Company through itself and its nominees and upon Scheme becoming effective, the entire paid-up capital of the Transferor Company held by the Transferee Company shall stand cancelled.	The Petitioner Companies stated that this point is fact on record and hence need not be traversed.	No further observations

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Para 22(b) That, the Clause 8.1 of Section-1 of Part-B of the Scheme seeks to protect all staff, workmen and employees of the Transferor Company, if any, in service on the scheme is approved by this Hon'ble Tribunal shall be deemed to have become staff, workmen and employees of the Transferee Company with effect from the Scheme is approved by this Hon'ble Tribunal. Hence, this Hon'ble Tribunal may be pleased to direct the Transferor and Transferee Companies to submit an undertaking to this Hon'ble Tribunal to the effect that there would be no retrenchment of any employee who were in service as on the Appointed Date i.e. 01-04-2024 as well.	The Petitioner Companies undertaken that there would be no retrenchment of any employee who were in service as on the Appointed Date i.e., 01.04.2024.	No further observations
Para Nos.22(c) to 22(k)	The Petitioner Companies stated that these points are facts on record and hence need not be traversed.	No further observations

12. The Deputy Commissioner of Income Tax, Circle-1(1), Hyderabad, vide his Affidavit/ report dated 13.03.2025 has made certain observations. The Petitioner Companies have filed reply Affidavit dated 13.06.2025, in response to the observations made by the Deputy Commissioner of Income Tax, Circle-1(1), Hyderabad. The details are given below:

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Observation of Deputy Commissioner of Income Tax, Circle-1(1), Hyderabad	**Reply filed by the Petitioner Companies by way of an Affidavit**
In the case of M/s.Anasia Lab Private Limited ("Transferor Company"), as per the Rectification Order U/s.154 r.w.s. 143 (1) of the Income Tax Act, 1961 dated 11.07.2023, there is an outstanding demand of Rs.44,880/-. As per the office records, the said demand and interest chargeable U/s. 220(2) of the Income Tax Act, 1961 is yet to be paid by the said company. The rectification order U/s. 154 r.w.s. 143(1) of Income Tax Act, 1961 is enclosed herewith as Annexure.	It is submitted that the Transferee Company confirms that Anasia Lab Private Limited ("Transferee Company") has paid the outstanding demand of Rs.44,880/- and interest of Rs.11,648/- under Section 220(2) of the Income Tax Act, 1961 for the Assessment year 2022-23 on 10.06.2025. The Challan Receipt for the same is enclosed.

13. **OBSERVATION**

We have heard the Learned Counsel appearing for the Petitioner Companies and perused the material papers on record. As regards to the observations pointed out by the Regional Director and compliance filed by the petitioner company, it appears that Petitioner Companies undertake to comply the necessary observations whenever required. The Official liquidator had also raised certain observations for which the

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Petitioner Companies filed its reply by way of Affidavit. The Deputy Commissioner of Income Tax, Hyderabad had also raised certain observations for which the Transferee Company complied and filed its reply by way of Affidavit. After hearing the Counsel for the Petitioner Companies and considering the material on record, we are of the view that scheme is not opposed to public interest and the proposed Scheme is in the interests of the Transferor Company, the Transferee Company and their respective shareholders, employees, creditors and all persons concerned. Hence the scheme can be approved with appointed date as 01.04.2024. All the statutory compliances have been made under Section 230 to 232 of the Companies Act, 2013. Hence ordered.

ORDER

14. After hearing the Counsel for the Petitioner Companies and after considering the material on record, this Tribunal passed the following order:

(i). The Scheme of Amalgamation is hereby sanctioned with appointed date as 01.04.2024 and shall be binding on all the members, employees, creditors and all other stakeholders of the Petitioner Companies.

(ii). While Approving the Scheme, we made it clear that this order should not be construed as an order in anyway granting exemption from payment of Stamp Duty, taxes or any other charges, if any, payable in accordance with law or in respect of any permission/compliance with any other requirement which may be specially required under any law.

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(iii). The whole of the assets, property, rights and Liabilities of the Transferor Company shall be transferred without the requirement of any further act or deed to the Petitioner/Transferee Company.

(iv). We direct the Petitioner companies to comply with all the observations pointed out by the Regional Director.

(v). We direct the Petitioner companies to comply with all the observations pointed out by the Official Liquidator.

(vi). We direct the Petitioner Companies to preserve the books of accounts and papers and records and the same shall not be disposed of without the prior permission of the Central Government in terms of provisions of Section 239 of the Companies Act, 2013.

(vii). We direct the Petitioner Companies to ensure statutory compliance of all applicable laws and also on sanctioning of the present Scheme the Petitioner Companies shall not be absolved for any of their statutory liability in any manner.

(viii). All the legal proceedings pending by or against the Transferor Company shall be continued by or against the Transferee Company.

(ix). There was a demand from the Income Tax Authorities which has been paid by the Petitioner Companies. We, however direct the petitioner Companies to comply with the observations if any with the Income Tax Authorities as per law.

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(x). The Petitioner Companies are directed to strictly comply with the Accounting Treatment Standards prescribed under Section 133 of the Companies Act, 2013.

(xi). The sanction of the Scheme by this Tribunal shall not forbid the revenue authority from taking appropriate recourse for recovering the existing and previous tax liabilities of the Transferor and Transferee Companies.

(xii). We direct the Transferee Company to comply with the provisions of Section 2 (41) of the Companies Act, 2013, if applicable.

(xiii). The Transferor Company shall be dissolved without going through the process of winding up.

(xiv). The Petitioner Companies shall until the completion of the Scheme of Amalgamation, file a statement in such form and within such time as prescribed with the Registrar every year duly certified by a Chartered Accountant or a Cost Accountant or a Company Secretary to the effect that the Scheme of Amalgamation is being complied with in accordance with the orders of the Tribunal as required under Section 232 (7) of the Companies Act, 2013.

(xv). We direct the Petitioner Companies involved in the Scheme to comply with Rule 17 (2) of the Companies (Compromise, Arrangement and Amalgamation) Rules, 2013. The Petitioner Companies within 30

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days after the date of receipt of certified copy of the order, shall cause certified copy to be delivered in Form INC-28 to the Registrar of Companies concerned for registration and on such certified copy being delivered, Registrar of Companies concerned shall take all necessary consequential action in respect of the Petitioner Companies.

(xvi). The Petitioner Companies is further directed to take all consequential and statutory steps required in pursuance of the approved Scheme of merger under the provisions of the Companies Act, 2013 and submit necessary compliance and undertaking relating to the objections raised by the Regional Director (SER), MCA, GoI, Hyderabad.

(xvii). Any person shall be at the liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

(xviii). Accordingly, the Company Petition C.P. (CAA) No. 09/230/HDB/2025 is allowed and the same is disposed of.

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Man Mohan Gupta
Member Technical

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Rammurti Kushawaha
Member Judicial

Sridher/Siva